

Opinion of the Court

provided by the common law did not turn on whether someone we today would call a police officer worked for the government full time or instead for both public and private employers. Rather, at common law, “[a] special constable, duly appointed according to law, ha[d] all the powers of a regular constable so far as may be necessary for the proper discharge of the special duties intrusted to him, and in the lawful discharge of those duties, [was] as fully protected as any other officer.” W. Murfree, *A Treatise on the Law of Sheriffs and Other Ministerial Officers* § 1121, p. 609 (1884).

Sheriffs executing a warrant were empowered by the common law to enlist the aid of the able-bodied men of the community in doing so. See 1 W. Blackstone, *Commentaries on the Laws of England* 332 (1765); *In re Quarles*, 158 U. S. 532, 535 (1895). While serving as part of this “posse comitatus,” a private individual had the same authority as the sheriff, and was protected to the same extent. See, e. g., *Robinson v. State*, 93 Ga. 77, 83, 18 S. E. 1018, 1019 (1893) (“A member of a *posse comitatus* summoned by the sheriff to aid in the execution of a warrant for [a] felony in the sheriff’s hands, is entitled to the same protection in the discharge of his duties as the sheriff himself”); *State v. Mooring*, 115 N. C. 709, 710–711, 20 S. E. 182 (1894) (considering it “well settled by the Courts” that a sheriff may break open the doors of a house to execute a search warrant and that “if he act in good faith in doing so, both he and his *posse comitatus* will be protected”); *North Carolina v. Gosnell*, 74 F. 734, 738–739 (CC WDNC 1896) (“Both judicial and ministerial officers, in the execution of the duties of their office, are under the strong protection of the law; and their legally summoned assistants, for such time as in service, are officers of the law”); *Reed v. Rice*, 25 Ky. 44, 46–47 (App. 1829) (private individuals summoned by a constable to execute a search warrant were protected from a suit based on the invalidity of the warrant).

Indeed, examples of individuals receiving immunity for actions taken while engaged in public service on a temporary

Opinion of the Court

or occasional basis are as varied as the reach of government itself. See, e. g., *Gregory v. Brooks*, 37 Conn. 365, 372 (1870) (public wharfmaster not liable for ordering removal of a vessel unless the order was issued maliciously); *Henderson v. Smith*, 26 W. Va. 829, 836–838 (1885) (notaries public given immunity for discretionary acts taken in good faith); *Chamberlain v. Clayton*, 56 Iowa 331, 9 N. W. 237 (1881) (trustees of a public institution for the disabled not liable absent a showing of malice); *McCormick v. Burt*, 95 Ill. 263, 265–266 (1880) (school board members not liable for suspending a student in good faith); *Donahoe v. Richards*, 38 Me. 379, 392 (1854) (same); *Downer v. Lent*, 6 Cal. 94, 95 (1856) (members of a Board of Pilot Commissioners given immunity for official acts); *Rail v. Potts & Baker*, 27 Tenn. 225, 228–230 (1847) (private individuals appointed by the sheriff to serve as judges of an election were not liable for refusing a voter absent a showing of malice); *Jenkins v. Waldron*, 11 Johns. 114, 120–121 (NY Sup. Ct. 1814) (same).

We read § 1983 “in harmony with general principles of tort immunities and defenses.” *Imbler*, 424 U. S., at 418. And we “proceed[] on the assumption that common-law principles of . . . immunity were incorporated into our judicial system and that they should not be abrogated absent clear legislative intent to do so.” *Pulliam v. Allen*, 466 U. S. 522, 529 (1984). Under this assumption, immunity under § 1983 should not vary depending on whether an individual working for the government does so as a full-time employee, or on some other basis.

B

Nothing about the reasons we have given for recognizing immunity under § 1983 counsels against carrying forward the common-law rule. As we have explained, such immunity “protect[s] government’s ability to perform its traditional functions.” *Wyatt v. Cole*, 504 U. S. 158, 167 (1992). It does so by helping to avoid “unwarranted timidity” in performance of public duties, ensuring that talented candidates are

Opinion of the Court

not deterred from public service, and preventing the harmful distractions from carrying out the work of government that can often accompany damages suits. *Richardson v. McKnight*, 521 U. S. 399, 409–411 (1997).

We have called the government interest in avoiding “unwarranted timidity” on the part of those engaged in the public’s business “the most important special government immunity-producing concern.” *Id.*, at 409. Ensuring that those who serve the government do so “with the decisiveness and the judgment required by the public good,” *Scheuer v. Rhodes*, 416 U. S. 232, 240 (1974), is of vital importance regardless whether the individual sued as a state actor works full time or on some other basis.

Affording immunity not only to public employees but also to others acting on behalf of the government similarly serves to “‘ensure that talented candidates [are] not deterred by the threat of damages suits from entering public service.’” *Richardson, supra*, at 408 (quoting *Wyatt, supra*, at 167). The government’s need to attract talented individuals is not limited to full-time public employees. Indeed, it is often when there is a particular need for specialized knowledge or expertise that the government must look outside its permanent work force to secure the services of private individuals. This case is a good example: Filarsky had 29 years of specialized experience as an attorney in labor, employment, and personnel matters, with particular expertise in conducting internal affairs investigations. App. to Pet. for Cert. 59, 89; App. 156. The City of Rialto certainly had no permanent employee with anything approaching those qualifications. To the extent such private individuals do not depend on the government for their livelihood, they have freedom to select other work—work that will not expose them to liability for government actions. This makes it more likely that the most talented candidates will decline public engagements if they do not receive the same immunity enjoyed by their public employee counterparts.